Reference No: 120FWCs/2025-26/01

BID SOLICITATION DOCUMENTS 2025-26

FOR

PROCUREMENT OF GOODS

FURNITURE FIXTURE UNDER ADP SCHEME:

UNDER ADP (AIP) SCHEME, ESTABLISHMENT OF 120 FAMILY WELFARE CENTERS IN KHYBER PAKHTUNKHWA

OFFICE OF THEPROJECT DIRECTOR, POPULATION WELFARE DEPARTMENT,
Plot No.18, Sector E-8, Phase-7 near Allied Bank, Hayatabad, Peshawar.

E-Invitation for Bids (IFB) via EPADS

Sealed E-bids are invited from well reputed firms duly registered with Income Tax and Sales Tax Departments and active on Tax payer list, for supply of Goods (Furniture and Fixture for ADP 2025-26 Scheme Establishment of 120 Family Welfare Centers In Merged Districts of Khyber Pakhtunkhwa.

2. Interested eligible bidders may obtain further information and inspect the bidding documents from office of The Project Director (120 FWCs)/ DPWO Peshawar, Directorate General, Population Welfare Plot No.18, Sector E-8, Phase-7 near Allied Bank, Hayatabad, Peshawar.

3. A complete set of bidding documents are available on EPADS and interested bidders may download it from EPADS.

4, All bids must be submitted electronically via EPADS (kp.eprocure.gov.pk) on or before 3rd April 2026 at 02:30 pm the bids shall be opened on the same day at 03:00 pm. Bids will be opened in the presence of bidders / representatives who choose to attend at the Office of Project Director 120 FWCs/ District Population Welfare Officer, Peshawar, Directorate General, Population Welfare, phase 7, Hayatabad, Peshawar.

5. Manual submissions of the bids will not be accepted under any circumstances. While preparing the bidding documents, bidder must ensure proper pagination and sequencing in accordance with the Bid Solicitation Documents (BSDs). If deemed necessary at any Stage of the Procurement process, The Procurement Committee may require bidders to present all original/physical bid documents-complementary to the files uploaded via the EPADS portal-for verification and official record purposes.

6. The bidders are requested to give their best and final prices as no negotiations are expected. Incomplete bids or received after due date and time will not be entertained.

7. The Two percent (2%) Bid Security of the total quoted amount must be required in the form of a Call Deposit Receipt (CDR) issued by a scheduled bank. The Original Bid Security shall be submitted in sealed envelope clearly marked the tender Reference No: 120FWCs/2025-2/01before the bid submission date and time. Failure to submit the original Bid Security within the deadline will result in rejection of the bid under KPPRA Rules and action will be taken as per KPPRA S.R.O. (29)/Vol:1-40/2025-26 dated 29 Oct 2025.

8. A Pre bid Meeting under rule-37(10) of KPPRA rules will be held on **27.03.2026** at 02:30 pm in the office of Project Director (120 FWCs)/DPWO Peshawar, Directorate General, Population Welfare Plot No.18, Sector E-8, Phase-7 near Allied Bank, Hayatabad, Peshawar.

9. The procuring entity reserves the right to reject any or all bids under clause 47 of KPPRA rules 2014.

10. Note: Only registered bidders on EPADS are eligible to participate in the bidding process. Interested bidder must registered via: https://kp.eprocure.gov.pk/#/supplier/registration

-sd-
PROJECT DIRECTOR (120 FWCs),
POPULATION WELFARE DEPARTMENT
KHYBER PAKHTUNKHWA

Section II. Bid Data Sheet

The following specific data for the goods to be procured shall complement, supplement, or amend the provisions in the Instructions to Bidders (ITB) Part One. Whenever there is a conflict, the provisions herein shall prevail over those in ITB.

Introduction	
ITB 1.1	**<u>Name of Procuring Agency of Government of Khyber Pakhtunkhwa:</u>** ADP Scheme "*Establishment of 120 Family Welfare Centers (FWCs) in Merged Districts Khyber Pakhtunkhwa*", Population Welfare Department Khyber Pakhtunkhwa
ITB 1.1	**<u>Name of ADP Project:</u>** Establishment of 120 Family Welfare Centers (FWCs) in Khyber Pakhtunkhwa
ITB 1.1	**<u>Name of Contract:</u>** **<u>Rules:</u>** Khyber Pakhtunkhwa Public Procurement of Goods, Works and Services Rules, 2014. **<u>CHAPTER II:</u>** Method of Procurement of Goods. **<u>Rule 6:</u>** Open competitive bidding as principal method of Procurement. **<u>Sub Rule 6(2a):</u>** Single Stage, Two Envelope Procedure through frame work contract under rule 31A. Bidder should quote rates item wise as well as lot-wise, bid evaluation and contract award will be finalized on the basis of lot wise rates where applicable.
ITB 4.1	**<u>Name of Procuring agency:</u>** ADP Scheme "*Establishment of 120 Family Welfare Centers (FWCs) in Merged Districts of Khyber Pakhtunkhwa*", Population Welfare Department Khyber Pakhtunkhwa
ITB 6.1	**<u>Procuring agency's address and telephone numbers:</u>** Office of Project Director (120 FWCs), Directorate General, Population Welfare Plot No.18, Sector E-8, Phase-7 near Allied Bank, Hayatabad, Peshawar, Phone # 091-9219051.
ITB 8.1	**<u>Language of the bid</u>:** English
ITB 11.2	**<u>Bid Price:</u>** Bid Price quoted shall be inclusive of all taxes, duties, DPR, transportation, loading unloading charges etc.
ITB 11.4	**<u>The Price shall be fixed or adjustable:</u>**

	The Price shall be fixed.
ITB 12	**<u>Bid Currency:</u>** Bid currency shall be Pak Rupees.
Preparation and Submission of Bids	
ITB 13.3 (d)	**<u>Qualification of Requirements (Mandatory)</u>** i. Letter of intention. ii. National Tax Number certificate. iii. Sales Tax Registration Certificate. iv. Copy of Active Tax Payer List. v. Copy of Professional Tax Certificate of last 02 years. vi. Signed and certified Audit Reports of Last 03 years. vii. Copies of Income Tax Reports of Last 03 years. viii. Bank Statement of Last 02 years with annual turnover of more than 500 million. ix. 3 supply orders for similar type of goods. x. CNIC of authorized person. xi. 2%bid security. xii. Typed, signed and stamped quotation/price list for uploading on EPADS. xiii. Recent and subject specific affidavit on stamp paper of Rs.500/- to the effect that the firm has never been indulged in any litigation and has never been blacklisted by any government/semi-government organizations (procuring entity) under the administrative control of the federal / provincial governments.If any fault/defect occurs in the equipment during the warranty period, it will be repaired/replaced by the supplier at his own risk and cost. Only original & genuine items will be supplied and that supply will be completed as per given schedule.The firm/manufacturer/authorized dealer has the Capacity/Stock to supply the items within the time frame mentioned in the supply order. Non-compliance / deviation to any of the above clause(s) will lead to disqualification of the bidder.
ITB 15.1	**<u>Amount of bid security:</u>** @ 2% of total cost of the Bid in the shape of Bank Draft/CDR through any scheduled Bank in favor of the Project Director (120 FWCs), Population Welfare Department, KP.
ITB 16.1	**<u>Bid validity period:</u>** Up to 30th June, 2026.
ITB 17.1	**<u>Number of copies:</u>** The Bidder shall prepare only “ORIGINAL BID”.
ITB 18.2 (a)	**<u>Address for bid Opening &submission:</u>** Bid Submission through EPADS Only and opening address is Office of Project Director (120 FWCs)/ DPWO Peshawar, Directorate General, Population Welfare Plot No.18, Sector E-8, Phase-7 near Allied Bank, Hayatabad, Peshawar, Phone # 091-9219051

ITB 18.2 (b)	**<u>IFB title and number:</u>** IFB for supply of Furniture and Fixture etc for the ADP 2025-26 scheme Establishment Of 120 Family Welfare Centers (FWCs) In Merged Districts of Khyber Pakhtunkhwa. Reference No: 120FWCs/2025-26/01
ITB 19.1	**<u>Deadline for bid submission</u>:** As per IFB
ITB 22.1	**<u>Time, date, and place for bid opening:</u>** As per IFB
Bid Evaluation	
ITB 25.3	**<u>Criteria for bid evaluation:</u>** Lowest bid price quoted for items or LOT WISE of qualified bidder.
Contract Award	
ITB 29.1	**<u>Percentage for quantity increase or decrease:</u>** The variation of quantities of goods will be subject to availability of funds & need of the Project and will be determined accordingly.

Section III. Special Conditions of Contract (SCC)

Table of Clauses

S.No	Description
1.	DEFINITIONS (GCC CLAUSE 1)
2.	COUNTRY OF ORIGIN (GCC CLAUSE 3)
3.	PERFORMANCE SECURITY (GCC CLAUSE 7)
4.	INSPECTIONS AND TESTS (GCC CLAUSE 8)
5.	PACKING (GCC CLAUSE 9)
6.	DELIVERY AND DOCUMENTS (GCC CLAUSE 10)
7.	INSURANCE (GCC CLAUSE 11)
8.	INCIDENTAL SERVICES (GCC CLAUSE 13)
9.	SPARE PARTS (GCC CLAUSE 14)
10.	WARRANTY (GCC CLAUSE 15)
11.	PAYMENT (GCC CLAUSE 16)
12.	PRICES (GCC CLAUSE 17)
13.	LIQUIDATED DAMAGES (GCC CLAUSE 23)
14.	RESOLUTION OF DISPUTES (GCC CLAUSE 28)
15.	GOVERNING LANGUAGE (GCC CLAUSE 29)
16.	APPLICABLE LAW (GCC CLAUSE 30)
17.	NOTICES (GCC CLAUSE 31)

Special Conditions of Contract (SCC)

The following Special Conditions of Contract shall supplement the General Conditions of Contract. Whenever there is a conflict, the provisions herein shall prevail over those in the General Conditions of Contract. The corresponding clause number of the GCC is indicated in parentheses.

1. Definitions (GCC Clause 1)

GCC 1.1 (g)—The Procuring agency is:

ADP Scheme "*Establishment of 120 Family Welfare Centers (FWCs) in Merged Districts of Khyber Pakhtunkhwa*", Population Welfare Department Khyber Pakhtunkhwa

GCC 1.1 (h)—The Procuring agency's country is: Pakistan

GCC 1.1 (i)—The Supplier is: Approved Bidder

GCC 1.1 (j)—The Project Site is:

Office of Project Director (120 FWCs), Directorate General, Population Welfare Plot No.18, Sector E-8, Phase-7 near Allied Bank, Hayatabad, Peshawar, Phone # 091-9219051.

2. **Country of Origin (GCC Clause 3)**

All countries and territories.

3. Inspections and Tests (GCC Clause 8)

GCC 8.6—Inspection and tests prior to shipment of Goods and at final acceptance are as follows:

i.The inspection of supplied items shall be conducted by inspection committee at the store of Procuring Agency. Satisfactory report of the inspection committee shall be required regarding acceptability of goods.

ii. In case of substandard or not according to sample/specification the supplier should replace the item/items at his own risk and cost.

4. Packing (GCC Clause 9)

GCC 9.3—The following SCC shall supplement GCC Clause 9.2: The goods shall be supplied in company packed form and shall only be opened in the presence of purchase/inspection committee members. Working manual and other related literature if any shall accompany the goods in original at the time of delivery.

5. Delivery and Documents (GCC Clause 10)

Delivery: The items shall be supplied within 90 days preferably in one go of issuance of supply order or the time limit given in the supply order.

Documents:

i. Delivery challan shall be provided at the time of supply of goods at the store of Procuring Agency.

ii. Manufacturer's or Supplier's warranty card/certificate shall be provided where applicable.

iii. Serial numbers of the supplied goods shall be provided where applicable.

6. Insurance (GCC Clause 11)

GCC 11.1— The Goods supplied under the Contract shall be delivered duty paid (DDP) under which risk is transferred to the buyer after having been delivered, hence insurance coverage is sellers responsibility. Since the Insurance is seller's responsibility they may arrange appropriate coverage.

7. Incidental Services (GCC Clause 13)

GCC 13.1—Incidental services to be provided are: As per GCC

8. Spare Parts (GCC Clause 14)

GCC 14.1—Additional spare parts requirements are: Not Applicable

9. Warranty (GCC Clause 15)

GCC 15.2—In partial modification of the provisions, the warranty period shall be 12 months (where applicable) from date of delivery of the Goods. The Supplier shall, in addition, comply with the performance and/or consumption guarantees specified under the Contract or BSDs.
The supplier shall pay liquidated damages to the Procuring agency with respect to the failure to meet the contractual guarantees.

GCC 15.4 & 15.5—The period for correction of defects in the warranty period is: The period for correction of defects in the warranty period shall be decided by the procuring entity.

10.Payment (GCC Clause 16)

GCC 16.1—The method and conditions of payment to be made to the Supplier under this Contract shall be as follows:
Payment shall be made on production of the following documents: -

a. The Supplier submits manually signed computerized invoice in triplicate. The invoice must show the Purchase Order No., Delivery challan No., with date, price/rate of each item.
b. Delivery challan (in original) signed by the Storekeeper and Countersigned by Project Director (120 FWCs) in acknowledgement of having received all supplies/deliverables in accordance with the Purchase/supply Order.
c. Authenticated sales tax invoice in original as prescribed in the Sales Tax Act 1990.
d. Payment will be made subject to satisfactory report of inspection committee.
e. Recovery of all applicable taxes at source shall be made as per rules.
f. Part payment on part supply may be allowed by procuring entity.

11. Prices (GCC Clause 17)

GCC 17.1—Prices shall be adjusted in accordance with provisions in the Attachment to SCC. The Price shall be fixed.

12. Liquidated Damages (GCC Clause 23)

GCC 23.1—Applicable rate:
In case the Supplier fails to make deliveries as per purchase order and within the time frame as stipulated in the Schedule of Requirement, a penalty @ 0.067% per day of the cost as late delivered supply shall be imposed upon the Supplier to the extent of 45 days (after delivery period). In case of further inordinate delay, the matter will be decided by procuring entity.

13. Resolution of Disputes (GCC Clause 28)

GCC 28.3—The dispute resolution mechanism to be applied pursuant to GCC Clause 28.2 shall be as follows:

In the case of a dispute between the Procuring agency and the Supplier, the dispute shall be

referred to adjudication or arbitration in accordance with the KPPRA act/rules.

14. Governing Language (GCC Clause 29)

GCC 29.1—The Governing Language shall be: English.

15. Applicable Law (GCC Clause 30)

GCC 30.1-The Contract shall be interpreted in accordance with the KPPRA Act/Rules.

16. Notices (GCC Clause 31)

GCC 31.1—Procuring agency's address for notice purposes:

Project Director (120 FWCs)/ DPWO Peshawar, Directorate General of Population Welfare, Plot No.18 , Street No. 5, Sector E8, Phase-7, Hayatabad, Peshawar.

—Supplier's address for notice purposes:

As per agreement with approved bidder.

TECHNICAL EVALUATION CRITERIA

- The selection will be carried out Lot-wise on total of each Lot value.

- Bidders are required to achieve minimum 70% marks to be declared as technically qualified bidder.

- Financial bids of only technically qualified bidders will be opened publically at the time to be announced by the procuring Agency. The Financial Bids of technically disqualified bidders will be returned un-opened to the respective bidders. Merit points system on the basis of 70:30 will be used and contract will be awarded accordance to KPPRA rule 2014 section 6(2)(b) Single Stage Two Envelopes Procedure.

- The quality and cost-based evaluation shall be done on the Criteria where Technical Score will be given 70% Weightage and Financial Score will be given 30% weightage.

- The Highest Ranked Fair Bidder in Combine Technical / Financial Evaluation Shall be declared as qualified Bidder.

- The weight given to the Technical and Financial proposals are:

Technical	70%
Financial	30%

- Joint Venture (JV) is not allowed.
- The date, time and address of the financial proposal opening will be communicated after evaluation of technical bids.

- The bidders are required to provide genuine, true information, proof/ evidence of all the information placed in the technical proposal in case of providing false information the bidder will be considered as non-responsive and Strick action will be taken against him which includes debarment / Blacklisting.

EVALUATION CRITERIA

Mandatory Requirement		
S.No	**Description**	**Y/N**
1	Letter of intention	
2	Income Tax Registration (National Tax Number Certificate) (Active Status on Tax Payer List).	
3	Sales Tax Registration Certificate (Active Status on Tax Payer List).	
4	2% bid security	
5	Recent and subject specific affidavit on E-Stamp paper of Rs.500/- to the effect that the firm has never been indulged in any litigation and has never been blacklisted by any government/semi-government organizations (procuring entity) under the administrative control of the federal / provincial governments.	
6	The Bidder shall comply with 100% of the required technical specification by submitting compliance statement supported with technical literatures.	
7	The Bidder must provide financial statement audited by chartered accountant for the last 3 years. The Auditor must be enlisted with state bank of Pakistan.	

Note: Any bidder not fulfilling any of the above mentioned mandatory requirements will be rejected/ disqualified straight away and no further evaluation will be considered and will be declared as Non-response bidder in the technical evaluation.

S.No	Technical Evaluation Criteria	Max Marks	Obt Marks
1	Provide list of Furniture/similar supply item during the last 3 years give name of project, name of Employer, start and completion dates, contract value etc. Also provide work order/completion certificates for each completed Contract(Top two contract) 1. Work Done of Highest Amount = 10 2. Work Done Upto Rs 150 million = 05 4. Rs. Below 150 Million = 00	**10**	
2	**Carried out similar projects** Projects of similar nature (Supply and Installation of Similar Item) and Furniture or other project completed within 3 year 1 Contract/Purchase Order having value Rs 200 million or above = 35 Marks 1 Contract/Purchase Order having value Rs 150 million or above= 15 Marks Contract/Purchase Order having less value than 150 million = 0 Marks	**35**	
3	**Projects in hand** Projects of similar nature (Supply and Installation of Similar Equipment/kit) and Furniture or other project in hand 1 Contract/Purchase Order having value Rs 200 million or above = 30 Marks 1 Contract/Purchase Order having value Rs 150 million or above = 20 Marks Contract/Purchase Order having less value	**30**	

	than Rs 150 million or above = 00 Marks		
4	**Annual average Turn Over, avg. last 3 years** • More than Rs. 200 million = 5 • Less than Rs. 200 million = 0	**05**	
5	**Working Capital 5** • More than Rs. 100 million = 5 • Less than Rs. 100 million = 0	**05**	
6	**Bank Credit Line 5** • More than Rs.100 million 5 • Less than Rs 100 million 0	**05**	
7	**Manufacturer of furniture** • **Bidders having manufacturing proof**	**05**	
8	**ISO Certification** 1. ISO CERTIFICTION ISO 45001:2018	**05**	
9	**Total**	**100**	
	Passing Marks	**70**	

Furniture and Fixture Items

LOT-01

S#	Item	Quantity
1	**Examination table/Couch Standard size** Structure made of iron square pipe (18 gauge) with paint (powder coated). Best quality foam and rexine.	120
2	Steps for table	360
3	**Bed/cot with mattress, pillow, Bed sheet and Pillow Cover** Iron Bed size 6x3 feet, Structure made of iron square pipe (18 gauge) with paint (powder coated), Best quality mattress 4 inch, Best quality Pillow with cover and Bed sheet	120
4	**Screen,** Folding 04 panels, on casters, Structure made of iron square pipes (18 gauge) with paint (powder coated) with curtains	240
5	**Revolving Stool Standard size** Top steel, structuremade of iron square pipe (18 gauge) with paint (powder coated)	240
6	**Cupboards (steel)** 3'x6' feet size with 20 gauge steel with paint (powder coated)	243
8	**Sofa Set 05 seater for Office**	02

LOT-2

S#	Item	Quantity
1	**Office table Size 5x2.6 feet** Structure made of 25mm iron square pipe (18 gauge) with paint (powder coated). Top 25mm thick Lasani Lamination. Two side drawer boxes in three drawers, upper lockable, back closed.	122
2	**Chairs** Structure made of 18mm iron square pipe with paint (powder coated). Seat & back made of solid wood knitted with natural cane. Finished with lacquer spray polish.	498
3	**Benches with back 3 seater 5 feet** Structure made of 25x25 mm (18 gauge) iron square pipe with paint (powder coated). Seat & back 18mm thick Lasani Lamination.	242
4	**Wooden Stools** Size 610 mm full height 360 mm. Top made of 18 mm (MDF rounded finish with shisham color polish/ Lasani Laminated board) structure made of iron square pipe (18 gauge) with paint (powder coated)	240
5	**Racks for papers etc.** Size: 820 x 390 x 760 mm Complete body made of 18 mm thick chipboard pressed with shisham veneer. One adjustable shelf. Footing 25mm (18 gauge) iron square pipe with paint (powder coated). Finished with lacquer spray polish.	245
6	**Office table Size 6x3 feet** Structure made of 25mm iron square pipe (18 gauge) with paint (powder coated). Top 25mm thick Lasani Lamination. Two side drawer boxes in three drawers, upper lockable, back closed	03
7	**Revolving Chair for Officer** Executive Chair Medium Size	05
8	**Computer Table** Dimensions like 39-72 inches (100-183 cm) in length, 24-30 inches (60-76 cm) in depth, and a height of approximately 75 cm, along with materials such as particle board or MDF with a melamine surface and PVC edging with keyboard tray, cable management inclusion of drawers, CPU stands.	03
9	**Computer Chairs** Dimensions: 68 x 65 x 107-117 cm with high back, height adjustment, headrest, Fabric seat Nylon base with PU swivel wheels, Adjustable lumbar support.	03
10	**File Cabinet** Dimensions (height, width, depth), material (cold-rolled steel or laminate), capacity (number of drawers, shelves, or compartments), security features (locks, fire/waterproofing), drawer functionality (fully extendable, accommodates A4/legal/letter files), and finish (powder-coated, rust-resistant).	05
11	**Cushion Chair** 31H x 18W x 18”D, Seat height: 18”) Frame of made of Sheesham wood (lacquer polish). Seat and Back Molty Foam No.1 quality with fabric.	12

Section V. Technical Specifications

Single Stage, Two Envelope Procedure through frame work contract. Specifications of items are already incorporated in description of items at Section IV Schedule of Requirements.

Note: Quantities mentioned in front of each item/s under section IV are tentative, as the project is ADP funded therefore quantities may vary subject to availability of funds and need of Department also the Mode of Contract is under Open Frame work Agreement already mentioned in Bid Data sheet.

Section VI. Sample Forms

S.No.	Description	Page No.
1.	BID FORM AND PRICE SCHEDULES	43-44
2.	BID SECURITY FORM	45
3.	CONTRACT FORM	46
4.	PERFORMANCE SECURITY FORM	47
5.	INTEGRITY PACT	48

1. **Bid Form and Price Schedules**

Date:_____
IFB No:_____

To: *[name and address of Procuring Agency]*

Gentlemen and/or Ladies:

Having examined the bidding documents including Addenda Nos. *[insert numbers]*, the receipt of which is hereby duly acknowledged, we, the undersigned, offer to supply and deliver *[description of goods and services]* in conformity with the said bidding documents for the sum of *[total bid amount in words and figures]* or such other sums as may be ascertained in accordance with the Schedule of Prices attached herewith and made part of this Bid.

We undertake, if our Bid is accepted, to deliver the goods in accordance with the delivery schedule specified in the Schedule of Requirements.

If our Bid is accepted, we will obtain the guarantee of a bank in a sum equivalent to _____ percent of the Contract Price for the due performance of the Contract, in the form prescribed by the Procuring agency.

We agree to abide by this Bid for a period of [number] days from the date fixed for Bid opening under Clause 22 of the Instructions to Bidders, and it shall remain binding upon us and may be accepted at any time before the expiration of that period.

Until a formal Contract is prepared and executed, this Bid, together with your written acceptance thereof and your notification of award, shall constitute a binding Contract between us.

Commissions or gratuities, if any, paid or to be paid by us to agents relating to this Bid, and to contract execution if we are awarded the contract, are listed below:

Name and address of agent	Amount and Currency	Purpose of Commission or gratuity

(if none, state “none”)

We understand that you are not bound to accept the lowest or any bid you may receive.

Dated this _____ day of _____ 20_____.

_____ _____
signature] [in the capacity of]

Price Schedule in Pak. Rupees

Name of Bidder_____ IFB Number_____ Page of_____

1	2	3	4	5	6	7
Item	Description	Country of Origin	Quantity	Unit price DDP named place	Total DDP per item	Unit price of Delivered duty paid (DDP) to final destination plus price of other incidental services if required3

Signature of Bidder _____

Note: In case of discrepancy between unit price and total, the unit price shall prevail.

2. Bid Security Form

Whereas [name of the Bidder] (hereinafter called “the Bidder”) has submitted its bid dated *[date of submission of bid]* for the supply of *[name and/or description of the goods]* (hereinafter called “the Bid”).

KNOW ALL PEOPLE by these presents that WE [name of bank] of [name of country], having our registered office at [address of bank] (hereinafter called “the Bank”), are bound unto [name of Procuring agency] (hereinafter called “the Procuring agency”) in the sum of for which payment well and truly to be made to the said Procuring agency, the Bank binds itself, its successors, and assigns by these presents. Sealed with the Common Seal of the said Bank this _____ day of _____ 20____.

THE CONDITIONS of this obligation are:

1. If the Bidder withdraws its Bid during the period of bid validity specified by the Bidder on the Bid Form; or

2. If the Bidder, having been notified of the acceptance of its Bid by the Procuring agency during the period of bid validity:

    a. fails or refuses to execute the Contract Form, if required; or
    b. fails or refuses to furnish the performance security, in accordance with the Instructions to Bidders;

We undertake to pay to the Procuring agency up to the above amount upon receipt of its first written demand, without the Procuring agency having to substantiate its demand, provided that in its demand the Procuring agency will note that the amount claimed by it is due to it, owing to the occurrence of one or both of the two conditions, specifying the occurred condition or conditions.

This guarantee will remain in force up to and including twenty eight (28) days after the period of bid validity, and any demand in respect thereof should reach the Bank not later than the above date.

_____

[signature of the bank]

3. Contract Form

THIS AGREEMENT made the _____ day of _____ 19_____ between *[name of Procuring Agency]* of *[country of Procuring agency]* (hereinafter called "the Procuring agency") of the one part and *[name of Supplier] of [city and country of Supplier*] (hereinafter called "the Supplier") of the other part:

WHEREAS the Procuring agency invited bids for certain goods and ancillary services, viz., *[brief description of goods and services]* and has accepted a bid by the Supplier for the supply of those goods and services in the sum of *[contract price in words and figures]* (hereinafter called "the Contract Price").

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. In this Agreement words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract referred to.

2. The following documents shall be deemed to form and be read and construed as part of this Agreement, viz.:
   (a) the Bid Form and the Price Schedule submitted by the Bidder;
   (b) the Schedule of Requirements;
   (c) the Technical Specifications;
   (d) the General Conditions of Contract;
   (e) the Special Conditions of Contract; and
   (f) the Procuring agency's Notification of Award.

3. In consideration of the payments to be made by the Procuring agency to the Supplier as hereinafter mentioned, the Supplier hereby covenants with the Procuring agency to provide the goods and services and to remedy defects therein in conformity in all respects with the provisions of the Contract

4. The Procuring agency hereby covenants to pay the Supplier in consideration of the provision of the goods and services and the remedying of defects therein, the Contract Price or such other sum as may become payable under the provisions of the contract at the times and in the manner prescribed by the contract.

IN WITNESS whereof the parties hereto have caused this Agreement to be executed in accordance with their respective laws the day and year first above written.

Signed, sealed, delivered by _____ the_____(for the Procuring Agency)

Signed, sealed, delivered by _____ the_____(for the Supplier)

4. Performance Security Form

To: *[name of Procuring agency]*

WHEREAS [name of Supplier] (hereinafter called “the Supplier”) has undertaken, in pursuance of Contract No. *[reference number of the contract]* dated _____ 20_____ to supply *[description of goods and services]* (hereinafter called “the Contract”).

AND WHEREAS it has been stipulated by you in the said Contract that the Supplier shall furnish you with a bank guarantee by a reputable bank for the sum specified therein as security for compliance with the Supplier’s performance obligations in accordance with the Contract.

AND WHEREAS we have agreed to give the Supplier a guarantee:

THEREFORE WE hereby affirm that we are Guarantors and responsible to you, on behalf of the Supplier, up to a total of *[amount of the guarantee in words and figures]*, and we undertake topay you, upon your first written demand declaring the Supplier to be in default under the Contract and without cavil or argument, any sum or sums within the limits of *[amount of guarantee]* as aforesaid, without your needing to prove or to show grounds or reasons for your demand or the sum specified therein.

This guarantee is valid until the _____ day of _____20_____.

Signature and seal of the Guarantors

_____

[name of bank or financial institution]

_____

[Address]

_____

[date]

5. INTEGRITY PACT

DECLARATION OF FEES, COMMISSION AND BROKERAGE ETC. PAYABLE BY THE SUPPLIERS OF GOODS, SERVICES & WORKS IN CONTRACTS WORTH RS. 10.00 MILLION OR MORE

Contract No._____ Dated _____Contract Value: *[To be filled in at the time of signing of Contract]* Contract Title: _____

[name of Supplier] hereby declares that it has not obtained or induced the procurement of any contract, right, interest, privilege or other obligation or benefit from Government of Khyber Pakhtunkhwa (GoKP) or any administrative subdivision or agency thereof or any other entity owned or controlled by GoKP through any corrupt business practice.

Without limiting the generality of the foregoing, [name of Supplier] represents and warrants that it has fully declared the brokerage, commission, fees etc. paid or payable to anyone and not given or agreed to give and shall not give or agree to give to anyone within or outside Pakistan either directly or indirectly through any natural or juridical person, including its affiliate, agent, associate, broker, consultant, director, promoter, shareholder, sponsor or subsidiary, any commission, gratification, bribe, finder's fee or kickback, whether described as consultation fee or otherwise, with the object of obtaining or inducing the procurement of a contract, right, interest, privilege or other obligation or benefit in whatsoever form from GoKP, except that which has been expressly declared pursuant hereto.

[name of Supplier] certifies that it has made and will make full disclosure of all agreements and arrangements with all persons in respect of or related to the transaction with GoKP and has not taken any action or will not take any action to circumvent the above declaration, representation or warranty.

[name of Supplier] accepts full responsibility and strict liability for making any false declaration, not making full disclosure, misrepresenting facts or taking any action likely to defeat the purpose of this declaration, representation and warranty. It agrees that any contract, right, interest, privilege or other obligation or benefit obtained or procured as aforesaid shall, without prejudice to any other rights and remedies available to GoKP under any law, contract or other instrument, be voidable at the option of GoKP.

Notwithstanding any rights and remedies exercised by GoKP in this regard, [name of Supplier] agrees to indemnify GoKP for any loss or damage incurred by it on account of its corrupt business practices and further pay compensation to GoKP in an amount equivalent to ten time the sum of any commission, gratification, bribe, finder's fee or kickback given by [name of Supplier] as aforesaid for the purpose of obtaining or inducing the procurement of any contract, right, interest, privilege or other obligation or benefit in whatsoever form from GoKP.

Name of Buyer: ……	Name of Seller/Supplier: ……
Signature: ……[Seal]	Signature: ……{Seal]